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Provision of December 19, 2024

Register of provisions

n. 805 of December 19, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Dr. Claudio Filippi, deputy secretary general;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD to Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers entrusted to the Guarantor for the

protection of personal data, approved by

resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the secretary

general pursuant to Article 15 of the Guarantor's

Regulation No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

Rapporteur Prof. Ginevra Cerrina Feroni;

WHEREAS

1. Introduction.

The Authority learned from a press article that the

Municipality of Levanto (hereinafter, the "Municipality") has

installed certain cameras equipped with automatic license plate reading

capabilities in its territory, in order to

study tourist flows, through

the identification of the Italian province or the

State of registration.

In a press release published on the official website

of the Municipality, it was also stated

that it employs "121 state-of-the-art cameras," equipped with "event monitoring and

search functionalities," and "6 license plate reading cameras at the city entrances that constantly check the insurance review status of vehicles and motorcycles" and allow for "analyzing both the origin flow of vehicles, dividing them by country for foreign traffic and by provinces for national traffic, as well as the flow of the most polluting vehicles through the analysis of the Euro homologation of vehicles and motorcycles," as well as "conducting searches on the color, size, and brand of vehicles: that is, the characteristics that immediately emerge from the first testimonies of those who witnessed the passage of cars fleeing from accidents or from robberies and thefts."

The same press release also reported the main data regarding the province of origin of approximately 512,000 vehicles that passed through the municipal territory between XX and XX.

2. The investigative activity.

In response to a request for information from the Authority (see note prot. n. XX of XX), the Municipality, with note of XX (prot. n. XX), stated, in particular, that:

"the surveillance system [of the Municipality] consists of 118 state-of-the-art context cameras [...] of which 110 [...] are already active and 8 are in the process of implementation - installed to meet typical institutional purposes of the Entity, such as security and control of the municipal territory (in particular, investigations/assessments on predatory acts and vandalism)";

"there are also 5 license plate reading cameras at the access roads to the municipal territory that detect the vehicular flow, of which only one has technical characteristics that allow the use of the 'advanced functionalities' for searching by color, model, type, and brand of vehicles (through [a] software [provided by a company - hereinafter, the 'Software'])";

"following the activation of the [aforementioned five] cameras [...] it is possible to carry out statistical surveys using the Software with an automated data separation process that extracts anonymous and statistical data [...] [, which is] external to the scope of application of the regulation on the processing of personal data [...], for the activities of traffic management and tourist flows";

"the video device that allows the use of the 'advanced functionalities' [...] was installed on XX while activation took place on XX";

"regarding the purpose of processing pursued and the sector regulations [the Municipality] refers [to] the Note from the Ministry of the Interior [, or to circular XX of XX,] specifying that the violations are carried out in real time" and, therefore, "regarding the homologation of the surveillance devices, it is not necessary as the

violations are carried out in real time (with the verification of the documentation by the Local Police) and not in deferred mode," through "the databases of the Civil Motorization." trasparenza di cui all'art. 5 del Regolamento; per non aver rispettato il termine massimo di conservazione dei dati, in violazione dell'art. 5, par. 1, lett. e) del Regolamento; per non aver fornito informazioni adeguate agli interessati, in violazione dell'art. 13 del Regolamento; per non aver effettuato una valutazione d'impatto adeguata, in violazione dell'art. 35 del Regolamento; per non aver rispettato le disposizioni relative alla pubblicazione delle informazioni sul sito web istituzionale, in violazione dell'art. 12 del Regolamento.

Il Comune ha quindi ricevuto un termine di 30 giorni per fornire le proprie osservazioni e per adottare le misure necessarie a conformarsi alle disposizioni del Regolamento.

In caso di inadempimento, l'Ufficio procederà con l'adozione dei provvedimenti previsti dall'art. 58, par. 2, del Regolamento, che possono includere sanzioni amministrative e l'ordine di cessare il trattamento dei dati.

Il Comune ha successivamente presentato le proprie osservazioni in data XX, evidenziando le misure adottate per garantire la conformità alle normative vigenti e richiedendo un incontro per discutere le questioni sollevate.

L'Ufficio, dopo aver esaminato le osservazioni e le misure proposte, ha ritenuto necessario un ulteriore approfondimento e ha programmato un incontro per il giorno XX.

In conclusione, il Comune è tenuto a garantire che tutte le operazioni di trattamento dei dati personali siano effettuate in conformità con le disposizioni del Regolamento e a garantire la protezione dei diritti degli interessati.

transparency and in the absence of a suitable legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code; for having carried out the processing of personal data through video devices, providing the data subjects with an inadequate first-level information notice, failing to provide them with a second-level information notice until XX, and thereafter, providing them with an inadequate second-level information notice, in violation of Articles 5, paragraph 1, letter a), 12, paragraph 1, and 13 of the Regulation; for having failed to prepare a data protection impact assessment before commencing the processing, in violation of Article 35 of the Regulation.

With the same note, the aforementioned data controller was invited to submit written defenses or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

In a note dated XX (prot. no. XX), the Municipality submitted a defensive memorandum, stating, in particular, that:

"the video devices equipped with license plate reading functionality are, in fact, operational on a continuous basis," but administrative checks have been carried out "only when [local police officers] are on the municipal territory to carry out real-time violations"; the information on the province of vehicle registration "is not obtained through inquiries to the Driver's Portal but can be inferred from the license plates themselves, which display letters and numbers from which it is possible to identify the data of only the province related to the first registration"; "the data stored on the server have been used to combat criminal phenomena following specific requests from the Judicial Authority, the Police Forces, or the Carabinieri"; "the Municipality [...], regardless of the publication of content on its website, has always made the second-level information notice available at the municipal office, as indicated on all displayed signs"; "the temporary unavailability of some sections of the website was due to technical problems related to the transition from the old to the new site"; "the Municipality [...] included in the first-level information notice an email address related to the Administration, considering it useful to channel all requests made by the data subjects to the Municipality's Protocol";

“the second-level information notice also included the direct contact of the DPO/RPD”;
“[the text] of the second-level information notice [in the version of] XX [was] subsequently uploaded by the Municipality's IT Office also on the website”;
“regarding the lack of a certain date for the DPIA [...], the Municipality] due to a mere error of assessment, did not consider it necessary to adopt the DPIA through a specific formal act, incurring the objective impossibility of proving to the Authority the certain date”;
following the notification of the administrative violation contestation, “the Municipality [...] deemed it necessary to deactivate the entire video surveillance system.”

During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX4 (see verbatim prot. no. XX of the same date), the Municipality stated, in particular, that:

“the Municipality has obtained specific public funding for the installation and use of the video surveillance systems in question, having acted, therefore, in good faith, trusting that it operated in line with the expectations of the authorities responsible for maintaining public order, also considering the specificities of the territory and the strong need to ensure effective control of it”;

“the Municipality preferred to suspend the use of the entire video surveillance system, in a spirit of extreme collaboration with the Authority and solely to ensure maximum compliance with data protection regulations”;

“as for the aspects concerning transparency, it should be noted that during the transition from the previous institutional website of the Entity to the current site, a misalignment occurred, which, for a certain period, did not allow the updated version of the information notice to be put online and prevented the Entity from accurately reconstructing the publication dates of the various versions of the notice that succeeded each other over time”;

“the video devices in question were put into operation during the SARS-CoV-2 epidemiological emergency, which, as is known, had significant repercussions on the administrative activities of public entities. In this delicate phase, the Municipality had to make complex decisions quickly, also to comply with the deadlines set by the procedures aimed at granting public funding for video surveillance. It should be noted that the Municipality [...] is, moreover, a small entity, with a population of about 5,131 residents and a presence of about 30,000 people during the summer period”;

“the impact assessment was drafted during the development and implementation of the project, although the Entity is unable to prove the certain date of the document, having not adopted the final version of it in the IT protocol”;

regarding the use of software to acquire data on the province/state of vehicle registration

in transit, “this functionality was offered by the supplier to the Authority, [and the Municipality] in good faith believed it could take advantage of it, under the assumption that there were no data protection issues to consider, on the premise that the Authority [would] only have access to statistical and aggregated data, with no possibility of identifying the data subjects”;

“although the data related to license plate numbers were retained for 180 days, they were used by the Authority exclusively in cases where the Law Enforcement Agencies requested information on transits in the context of judicial police investigations. No other processing was carried out using such data, and access to the same was granted exclusively to the Commander and two agents designated as public safety officers, in any case with systems suitable to ensure access only to authorized individuals.”

Subsequently, to clarify certain reservations expressed during the hearing, the Municipality, with note dated XX (prot. n. XX), declared, in particular, that:

“the Administration has managed to accurately reconstruct the dates of publication of the documentation useful for adequately informing users about the video surveillance system. In particular, it highlights the presence on the previous site (as well as on the more recent one, directly accessible at the page <https://comune.levanto.sp.it/privacy-policy/>) of the following documentation, tracked by the logs of updates to the privacy page related to video surveillance on the municipality's website and attached to this response: a) contact details of the DPO (Data Protection Officer) of the municipality of Levanto; b) the rights of the data subject; c) regulation for the discipline of video surveillance;

second-level GDPR information; e) information on the video surveillance system of the municipal territory”;

“the computer searches conducted following the hearing, while not allowing the recovery of removed (and/or replaced by new versions) content, attest to the creation date of the page dedicated to the first publication of the information and the dates of subsequent uploads/changes”;

“the nationality of the vehicle registration is derived from the ‘syntactic reading’ of the alphanumeric string that makes up the vehicle's license plate.” Conversely, the province of registration is attributed “by indirect comparison with a publicly accessible database (as per the associative website:

‘Associazione Targhisti Italiani’) populated by users on a voluntary and anonymized basis.”

Furthermore, the consulted Company states that: “The aforementioned database, in fact: i) contains exclusively various lists of alphanumeric ranges of parts of vehicle license plates attributed to the various Italian provinces that do not allow, even indirectly, any identification of natural persons to whom the vehicles in question might belong; ii) is periodically updated in an aggregated and statistical form on a voluntary basis and, on such bases, constitutes the source that allows the ‘local’ determination of the ‘possible province of registration of the vehicles whose license plates may be subject to the functionality of the Software.”

****3. Outcome of the investigative activity.****

****3.1 The lawfulness of the processing.****

As a result of the investigative activity, it emerged that the Municipality has equipped itself with: a video surveillance system, consisting of n. 118 cameras (of which eight are in the activation phase), for the pursuit of the “typical institutional purposes of the Authority, such as the safety and control of the municipal territory (in particular, investigations/checks on predatory acts and vandalism).” On some of these cameras, a motion detection functionality is activated, which is not aimed at identifying vehicles or individuals, allowing the local Police to search for specific events captured;

n. 5 non-certified cameras that allow for the automated reading of the license plates of vehicles in transit. These cameras are capable of determining the province and country of registration of such vehicles; one of them, activated on date XX, can also detect the type of vehicle, the make, the model, and the color of such vehicles, as well as their EURO classification (see technical report, cited). Of the four devices not equipped with advanced functionalities, three were activated on date XX and one in the month of XX. The devices in question allow for statistical processing regarding the State or province of vehicles in transit, as well as supporting the local Police in verifying compliance with obligations regarding vehicle inspection and mandatory insurance, as provided by the Highway Code (Legislative Decree of April 30, 1992, n. 285). The system is configured to carry out the “archiving of license plate data for a period of 180 days and for images for a period of 7 days” (see technical report, cited).

That said, it must be observed that public entities can, as a rule, process personal data through video devices if the processing is necessary to comply with a legal obligation to which the data controller is subject or for the execution of a task carried out in the public interest or connected to the exercise of public powers vested in the same (see art. 5, par. 1, lett. a), 6, par. 1, lett. c) and e), 2 and 3, of the Regulation, as well as art. 2-ter of the Code; see also the “Guidelines 3/2019 on the processing of personal data through video devices,” adopted by the European Data Protection Board on January 29, 2020, par. 41; see also the FAQs of the Guarantor regarding

****Video Surveillance, December 3, 2020, doc. web n. 9496574.****

The data controller is required, in any case, to respect the principles regarding data protection, including those of “lawfulness, fairness, and transparency” and “data minimization,” according to which personal data must be “processed lawfully, fairly, and transparently in relation to the data subject,” as well as “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (art. 5, par. 1, lett. a) and c) of the Regulation).

In this specific case, the Municipality employed five cameras that allow for the automated reading of the license plates of passing vehicles, one of which is equipped with an advanced functionality that allows for the acquisition of additional data (type of vehicle, make, model, color, EURO classification),

in order to verify compliance with the obligations regarding vehicle inspection and mandatory insurance, as provided for by the Highway Code.

As stated by the Authority, the contestations of violations were made in accordance with the methods provided by the circular of the Ministry of the Interior n. XX of XX, which allows the use of non-homologated video devices merely as a support tool for local police officers physically present in the areas subject to checks, for the purpose of identifying vehicles to stop and the immediate contestation of any violations that may be ascertained by the officers, unless there is a factual situation that makes it impossible to stop the vehicle and contest immediately, with reasons to be indicated in detail in the report.

However, as emerged from the investigation, the video devices in question collected the license plate numbers of all vehicles passing continuously, that is, regardless of the ascertainment of a violation of the Highway Code, and the Municipality retained them for 180 days, for the stated purpose of being able to respond to specific requests from the judiciary or law enforcement agencies, within the scope of their investigative activities, although, as stated by the Municipality during the hearing, without processing them for other administrative purposes.

In this regard, it should be noted that the sector regulations allow municipalities to use video surveillance cameras solely for the purpose of preventing and combating widespread and predatory crime, following the conclusion of an agreement for the implementation of urban security with the territorially competent Prefecture (see arts. 4 and 5, co. 2, lett. a) of the decree law of February 20, 2017, n. 14; see also art. 6, co. 7 and 8, of the decree law of February 23, 2009, n. 11; cf. provisions of January 11, 2024, n. 5, doc. web n. 9977020 and October 20, 2022, n. 341, doc. web n. 9831369). Aside from any consideration regarding the suitability of this legal basis to justify the use by municipalities of non-homologated video devices equipped with automated license plate reading functionality for the protection of urban security, moreover for a time frame of 180 days, significantly longer than the seven-day term provided for the retention of video surveillance footage (see art. 6, par. 8, of the decree law of February 23, 2009, n. 11), it is necessary to note that, in this case, the agreements for the implementation of urban security concluded by the Municipality with the Prefecture of La Spezia on XX and XX, filed in the records, do not provide for the use of devices equipped with such functionality for the purpose of preventing and combating widespread and predatory crime. Therefore, in this specific case, the processing of personal data in question cannot be traced back to the regulations on video surveillance for the protection of urban security as per arts. 4 and 5, co. 2, lett. a) of the decree law of February 20, 2017, n. 14.

In light of the above considerations, it must be concluded that, by continuously employing the five video devices in question for the reading of license plate numbers of passing vehicles and their subsequent retention for 180 days, in the absence of lawful grounds, the Municipality has carried out a processing of personal data in a manner not compliant with the principle of lawfulness, fairness, and transparency, in violation of arts. 5, par. 1, lett. a), and 6 of the Regulation as well as 2-ter of the Code.

As for the other advanced functionalities of which some video devices were equipped (movement detection), the investigation did not reveal that such functionalities involved making decisions concerning the data subjects based solely on automated processing (cf. art. 22 of the Regulation) nor that the Municipality has, in any case, effectively utilized them in concrete cases.

Furthermore, regarding the processing carried out for statistical purposes (province/state of vehicle registration; type of vehicle, make, model, and color of such vehicles, as well as EURO classification), through software provided by a third-party company, it is crucial to note that there was no appropriate legal basis that allowed for the collection and retention of the license plate numbers of all passing vehicles, while also acknowledging what was stated by the Municipality, subsequent to the hearing with the Authority, regarding the circumstance that the nationality of the registered vehicles would have been merely deduced from the format of the license plate, while the province of registration would have been determined by "indirect comparison" with a publicly accessible database maintained by an associative website and populated by users.

****3.2. Transparency towards the data subjects.****

When video devices are used, the data controller, in addition to providing first-level information by placing warning signage near the area under video surveillance, must also provide the data subjects with "second-level information," which must "contain all the mandatory elements as per Article 13 of the [Regulation]" and "be easily accessible to the data subject, for example through a comprehensive information page made available at a central hub [...] or posted in an easily accessible location" ("Guidelines 3/2019 on the processing of personal data through video devices," cited, particularly para. 7; but see also the "Provision on video surveillance" by the Guarantor dated April 8, 2010, web doc. no. 1712680, particularly para. 3.1; lastly, see the FAQ from the Guarantor regarding video surveillance, cited, no. 4; see also provisions dated January 11, 2024, no. 5, web doc. no. 9977020; October 20, 2022, no. 341, web doc. no. 9831369; April 28, 2022, no. 162, web doc. no. 9777974; April 7, 2022, no. 119, web doc. no. 9773950; September 16, 2021, no. 327, web doc. no. 9705650; and March 11, 2021, no. 90, web doc. no. 9582791).

The first-level information (warning sign) "should communicate the most important data, such as the purposes of processing, the identity of the data controller, and the existence of the rights of the data subject, along with information on the most significant impacts of the processing" (Committee Guidelines, cited, para. 114). Furthermore, the signage must also contain information that could be unexpected for the data subject. This could include, for example, the transmission of data to third parties, particularly if located outside the EU, and the data retention period. If such information is not indicated, the data subject should be able to trust that there is only real-time surveillance, without any data recording or transmission to third parties (Committee Guidelines, cited, para. 115). The first-level warning signage must contain a clear reference to the second level of information, for example, by indicating a website where the text of the extended information can be consulted.

In this case, the Municipality has submitted a copy of a sign containing the first-level information on the processing of personal data (see attachment 7 to note prot. no. XX of XX). However, this information does not comply with the requirements set forth by the Regulation (see Articles 12, para. 1, and 13), as follows:

- The purposes of processing are indicated in a completely generic manner ("security and protection of individuals and the assets of the Municipality of Levanto"), there is no mention of the administrative purposes related to verifying compliance with the obligations concerning review and insurance provided for by the Highway Code, nor is the legal basis for the processing indicated (see Article 13, para. 1, letter c), of the Regulation);
- The retention period for images is indicated ("7 days") but there is no indication regarding the retention period for data related to license plates, which is 180 days (see Article 13, para. 2, letter a), of the Regulation);
- The contact details of the Data Protection Officer (DPO), indicated on the sign, coincide with the institutional PEC address of the Municipality (comune.levanto.sp@legalmail.it), thus the data subjects were not in a position to directly contact the DPO (see Article 13, para. 1, letter b), of the Regulation);
- A website is indicated ("http://comune.levanto.sp.it/protezione_dati_personali_privacy.html"), where data subjects can find the text of the complete second-level information, which does not correspond to the address where, as stated by the Municipality, such information would have actually been published (see attachments 2 and 3 to note prot. no. XX of XX).

Regarding the second-level information on data processing, it should be noted that, despite the Authority's request to provide copies of the various versions of this information over time, specifying the publication date for each version on the aforementioned site (see note from XX, cited), the Municipality stated that it was unable to retrieve such documents and that the information, the first version of which dates back to July of XX, would have been subsequently modified on the following dates: "XX, XX, XX, XX, and XX." With note prot. no. XX of XX, the Municipality submitted the text of the latest version of the information from XX (see attachment 6 to note prot. no. XX of XX), which is a document published after the date of the first request for information addressed to the Municipality (see the cited note from the Authority prot. no. XX of XX).

Regarding the circumstance that the text of the second-level information was nonetheless available to the data subjects at the Municipality's office, it should be observed that Article 12, para. 1, of the

Regulation provides that the information referred to in Article 13 of the Regulation must be "easily accessible" to the data subjects. In this regard, the European Data Protection Board has stated that "second-level information must be easily accessible to the data subject, for example through a comprehensive information page made available at a central hub (service desk... information, reception, cash desk, etc.) or posted in an easily accessible location" ("Guidelines 3/2019 on the processing of personal data through video devices," cited, para. 117). This, however, on the condition that such a central node is located in proximity to the area subject to video surveillance. Conversely, when the video surveillance devices are distributed widely over a large geographical area, or, as in the present case, throughout the entire municipal territory, the first-level information must necessarily refer to a second-level information that is available online, so that the data subjects can easily access it without having to physically go to the data controller's premises, which would create a disincentive effect and require the data subjects to make an effort that cannot be considered proportional to the minimum effort that the data controller would incur for the online publication of the information text.

Nor can the defensive argument put forward by the Entity to resolve the reservations expressed during the hearing be accepted, namely that the log files of its IT system would prove the online publication on its website of certain documents related to the data protection aspects concerning the use of video devices, including the "information on video surveillance systems in the municipal territory." This is because, as the Municipality has not managed to retrieve a copy of such documents, it is not possible to ascertain their content for the purpose of verifying compliance with the provisions of Articles 5, para. 1, lett. a), 12, and 13 of the Regulation.

In light of the above considerations, it must be concluded that the Municipality has not proven that it provided the data subjects with complete information on data processing, at the second level, during the period between the activation date of its video surveillance devices and the XX, having therefore acted in violation of Articles 5, para. 1, lett. a), 12, para. 1, and 13 of the Regulation.

As for the text of the second-level information, published online starting from XX, it should be noted that it mentions multiple processing purposes simultaneously, without specifying which video devices (with the indication of the respective areas subject to video surveillance) are used to pursue each distinct processing purpose, thus not allowing the data subjects to be adequately informed about the actual processing purposes pursued on a case-by-case basis. In particular, it should be noted that the processing purpose related to "monitoring waste abandonment" cannot be pursued with the same surveillance cameras that broadly capture the public road for urban security purposes; rather, local authorities can use video devices (so-called camera traps) placed in specific and confined areas where there is an actual risk of illegal waste abandonment or improper disposal, provided that such areas are duly marked with informative signs (so that the data subjects are fully aware of being recorded and can, if necessary and where possible, decide to avoid surveillance) and only if it is not possible, or proves ineffective, to resort to alternative control tools and systems; this must be done in compliance with the principle of data minimization, which requires configuring such devices with a viewing angle limited to the areas affected by the aforementioned phenomena, typically characterized by low or limited human presence (see FAQs from the Guarantor regarding video surveillance, cited, no. 13).

Therefore, the information in question should have specified that this processing purpose referred exclusively to the "2 cameras monitoring the ecological islands," clearly indicating the specific areas where they are located (see the press release from the Municipality mentioned in the introduction), and it should be noted that Law No. 137 of October 9, 2023, converting Decree-Law No. 105 of August 10, 2023, has amended Article 255 of Legislative Decree No. 152 of April 3, 2006, bringing certain behaviors relevant to environmental protection into the criminal sphere, which were previously sanctioned administratively.

The information also mentions a completely generic processing purpose ("compliance with legal obligations") and makes no reference to the administrative purposes pursued by the Entity related to verifying compliance with the obligations regarding the review and mandatory insurance under the Highway Code, without indicating the five video devices - with their respective installation sites - used

for such processing purposes (see Article 13, para. 1, lett. c), of the Regulation).

It must therefore be concluded that, even after XX and until the date when the video devices in question were deactivated, the Municipality acted in violation of Article 13, para. 1, lett. c), of the Regulation.

3.3 Data Protection Impact Assessment.

In cases of high risks for the data subjects - arising, for example, from the use of new technologies and always present where systematic large-scale surveillance of a publicly accessible area is conducted (see Article 35, para. 3, lett. c), of the Regulation) - the data controller must carry out a data protection impact assessment in order to adopt, in particular, the appropriate measures to address such risks, consulting the Guarantor in advance, where the conditions apply (see Articles 35 and 36, para. 1, of the Regulation).

In the specific case, the Municipality was certainly subject to the obligation to draft a data protection impact assessment, considering that, pursuant to Article 35, paragraph 3, letter c), of the Regulation, the impact assessment is always required in the case of “systematic large-scale monitoring of a publicly accessible area,” a circumstance that applies in the present case, given the use of video devices installed on public roads, some of which, moreover, are equipped with automated license plate reading functionalities for passing vehicles.

That clarified, it is noted that the Municipality has stated that “the drafting of the impact assessment began on XX and was finalized following the implementations carried out with the interventions aimed at on XX and incorporated into the Video Surveillance Regulation approved by Resolution No. XX of XX.”

It is noted that, during the period between May 25, 2018 (the effective date of the Regulation) and XX, the Municipality acknowledged that it had not drafted a data protection impact assessment pursuant to Article 35 of the Regulation. It must, in any case, be observed that the document filed by the Municipality, containing the aforementioned impact assessment, lacks a certain date, bearing only a completely generic temporal indication (“year XX”), which is also inconsistent with the asserted finalization of the document on XX. In this regard, the Municipality has stated that it does not possess “formal acts of receipt of the [impact assessment],” drafted by a professional it appointed, and therefore, the Entity has not definitively proven the date on which the data protection impact assessment filed in the records would have been drafted. This document is also signed with a handwritten signature by the “designer,” that is, an external subject to the organization of the data controller, and not, instead, by the Mayor, as the legal representative of the Entity, or by another person formally delegated by them.

In light of the above considerations, since the Municipality has not proven that it drafted a data protection impact assessment on a certain date prior to the commencement of processing, signed by the Mayor or by another formally delegated subject, it must be concluded that the Municipality acted in violation of Article 35 of the Regulation.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – for the veracity of which they may be held accountable pursuant to Article 168 of the Code – while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor No. 1/2019 apply. Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted, for having processed personal data, through video devices, in violation of Articles 5, paragraph 1, letter a), 6, 12, paragraph 1, 13, and 35 of the Regulation, as well as Article 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (the same processing or interrelated treatments), Article 83, paragraph 3, of the Regulation applies, pursuant to which the total amount of the administrative pecuniary sanction does not exceed the

amount specified for the most serious violation. Given that, in the specific case, the most serious violations, relating to Articles 5, 6, 12, paragraph 1, and 13 of the Regulation, as well as Article 2-ter of the Code, are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as recalled also by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects – since, as stated during the investigation, the Municipality, although it had not received any prescription in this regard from the Authority, voluntarily deemed it appropriate to deactivate the video devices in question after receiving the notice of administrative violation and, therefore, before submitting its defensive memoranda – the conditions for the adoption of further corrective measures pursuant to Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the College [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019).

In this regard, considering Article 83, paragraph 3, of the Regulation, in the specific case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative monetary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

although the Municipality has collected data related to the license plates of vehicles in transit for an extensive period, thus potentially obtaining sensitive information regarding the movements of the interested parties within the municipal territory, the Entity has not processed the same within the administrative proceedings under its jurisdiction, having only retained the license plate numbers to respond to any requests from the Judicial Authority or Law Enforcement in the context of their investigations; the Entity has, therefore, acted with the intent to serve a public interest, albeit negligently, under the erroneous belief that there was an appropriate legal framework in support of the initiative undertaken (Article 83, paragraph 2, letters a) and b), of the Regulation);

although the Municipality has not proven the certain date of the data protection impact assessment, it has nonetheless stated that it relied on an expert consultant for the drafting of such a document, which would have been carried out during the development and implementation of the project (Article 83, paragraph 2, letter a), of the Regulation);

the processing involved a large number of interested parties and lasted for an extended period (Article 83, paragraph 2, letter a), of the Regulation);

there is no evidence that specific interested parties have suffered harm resulting from the processing of personal data carried out by the Municipality with the devices in question (Article 83, paragraph 2, letter a), of the Regulation);

the processing did not involve special data belonging to the special categories referred to in Article 9 of the Regulation (cf. Article 83, paragraph 2, letter g), of the Regulation);

it is believed that, in this case, the level of severity of the violation committed by the data controller is

medium (cf. European Data Protection Board, “Guidelines 4/2022 on the calculation of administrative monetary penalties pursuant to the GDPR” of May 24, 2023, point 60).

That said, considering that the data controller is a small Municipality (approximately 5,131 inhabitants), therefore equipped with limited organizational and economic resources, and noting that the circumstance, also invoked by the Municipality during the hearing, that the Entity acted in the context of the SARS-CoV-2 epidemiological emergency cannot be valued as a mitigating factor, since the processing took place over an extended period and concluded well beyond the cessation of the emergency period, it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account:

the Municipality has offered good cooperation with the Authority during the investigation, having, moreover, voluntarily interrupted the processing of the personal data in question after receiving the notification of the administrative violation from the Authority (Article 83, paragraph 2, letter f), of the Regulation);

there are no previous relevant violations committed by the Municipality (Article 83, paragraph 2, letter e), of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €4,000 (four thousand) for the violation of Articles 5, 6, 12, paragraph 1, 13, and 35 of the Regulation, as well as Article 2-ter of the Code, as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is in consideration of the fact that the processing involved data related to the license plates of vehicles in transit within the municipal territory, information that is particularly sensitive, given that, although the investigation revealed that the Municipality limited itself to merely retaining the same, their analysis could abstractly yield information regarding the movements of the interested parties within the municipal territory, and also considering that the processing took place over an extended period.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the illegality of the processing carried out by the Municipality of Levanto for violation of Articles 5, 6, 12, paragraph 1, 13, and 35 of the Regulation, as well as Article 2-ter of the Code, in the terms stated in the motivation;

ORDERS

the Municipality of Levanto, represented by the legal representative pro tempore, with registered office at Piazza Cavour, 1 - 19015 Levanto (SP), Tax Code 00197500119, to pay the sum of €4,000 (four thousand) as an administrative monetary sanction for the violations indicated in the motivation. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

INSTRUCTS

the aforementioned Municipality, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of 4,000 euros (four thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent enforcement actions pursuant to Article 27 of Law No. 689/1981;

ORDERS

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of the injunction order on the Guarantor's website;

- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the website of the Authority;
- pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 19, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE DEPUTY SECRETARY GENERAL

Filippi